

Tentative Rulings for August 28, 2026 Department PS4

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 650 1311**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2406958	DISCOVER BANK VS PESQUEIRA	MOTION TO SET ASIDE ON COMPLAINT OF DISCOVER BANK BY DISCOVER BANK

Tentative Ruling: Granted.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2507543	TD BANK USA N.A. VS STELZMANN	MOTION FOR ORDER TO DEEM MATTERS ADMITTED BY TD BANK USA N.A.

Tentative Ruling: Plaintiff TD Bank USA N.A.'s unopposed motion for an order deeming matters admitted is GRANTED. Requests 1 through 8, inclusive, in plaintiff's requests for admissions are deemed admitted for all purposes in this litigation.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2509081	CAPITAL ONE N.A. VS CRANBOURNE	MOTION FOR ORDER TO DEEM MATTERS ADMITTED BY CAPITAL ONE N.A.

Tentative Ruling: Plaintiff Capital One N.A.'s unopposed motion for an order deeming matters admitted is GRANTED. Requests 1 through 8, inclusive, in plaintiff's requests for admissions are deemed admitted for all purposes in this litigation.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2509690	CAPITAL ONE N.A. VS GERAS	MOTION FOR ORDER TO DEEM MATTERS ADMITTED BY CAPITAL ONE N.A.

Tentative Ruling: Plaintiff Capital One N.A.'s unopposed motion for an order deeming matters admitted is GRANTED. Requests 1 through 8, inclusive, in plaintiff's requests for admissions are deemed admitted for all purposes in this litigation.